

25VECV03997 25VECV03997

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25VECV03997 Neighborhoods First v Kohanoff

[TENTATIVE] ORDER: Plaintiff Neighborhoods First's Motion for Attorneys' Fees and Costs is GRANTED but at a reduced amount of \$15,834.63. This amount will be added to the Judgment.

Introduction

Plaintiff Neighborhoods First (Plaintiff) moved for attorneys' fees and costs against Defendant Ramin Kohanoff, individually and as trustee of the RK Legacy Trust Dated September 21, 2022 (Defendant). Plaintiff requested attorneys' fees in the amount of \$25,680.98, which includes attorneys' fees of \$24,960.50 and costs of \$720.48. Prior to the filing of the instant motion, Plaintiff filed a Cost Memorandum on April 23, 2026, which showed costs to be \$634.63.

The Court believes there is a typo in one citation. Plaintiff cited to "Thayer v. Wells Fargo Bank (2001) 92 Cal.App. 819". However, the correct citation is "Cal.App.4th". Plaintiff did not type in the "4th" in the motion. See page 13:18. The Court will give Plaintiff the benefit of the doubt and see this as merely a typo instead of an AI hallucination.

Discussion

Plaintiff asserted that they are the prevailing party on the action and are entitled to attorneys' fees under the Private Attorney General Act (PAGA) (Code Civ. Proc., sec. 1021.5.)

"Fees are permitted under section 1021.5 and the private attorney general doctrine 'in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any.'" (Riverside Sheriff's Ass'n v. County of Riverside (2007) 152 Cal.App.4th 414, 421.) This action was for an injunction against Defendant prohibiting Defendant from using their property as a "Party House" that created a public nuisance, which included loud amplified music and noise; unsafe traffic conditions and safety hazards including illegal parking. Plaintiff obtained a default judgment to enjoin Defendant from using the property as a "Party House." With these facts, Plaintiff sufficiently provided facts to show the benefit to the public and the necessity and financial burden of private enforcement making the fee award appropriate. Because the judgment was for an injunction, Plaintiff also sufficiently showed that there is no monetary award from where fees could be paid.

In determining the amount of "substantial attorney's fees" to encourage private suits to protect the public interests, the "trial court is to first determine a 'touchstone' or 'lodestar' figure" which is determined by multiplying the time reasonably spent by each biller entitled to compensation by a reasonable hourly compensation for each biller. (Serrano v. Priest (Serrano III) (1977) 20 Cal.3d 25, 48.) Plaintiff's counsels provided that the two attorneys' rates ranged from \$550.00/hour (31-year attorney) to \$695.00/hour (45-year attorney). (See Robert Glushon Decl. pars. 4 & 7, Sean Bryn Decl. par. 5.) Based upon the amount of experience both attorneys have, the Court finds the rates to be reasonable. Further, work was also performed by a paralegal at \$250.00/hour (3-year paralegal). (Sean Bryn Decl. par. 6.) The Court is not persuaded that a 3-year paralegal, without more facts, charging of \$250.00/hour is reasonable because such rates are commensurate with rates charged by attorneys with a similar amount of experience. The Court finds the paralegal's rates to be excessive and unreasonable. Counsels expended a total of 29.4 hours on the matter and the paralegal expended 25.5 hours on the matter. (Bryn Decl. par. 7) This action was resolved by way of Default Judgment, wherein Defendant did not make any appearance in the case. Because of the amount of experience of both attorneys, the Court is not convinced that the hours expended by both attorneys is commensurate with how the case was prosecuted. The time expended by both attorneys on a matter that was resolved by way of default judgment is excessive and unreasonable. Further, the invoices show that the paralegal did the bulk of the work to obtain the default judgment and an experienced paralegal should not have expended 25.5 hours to obtain a default judgment. The rate charged by the paralegal is unreasonable and the time expended by counsels and the paralegal to obtain a default judgment is unreasonable. The Court reduces the fees to a reasonable amount of \$15,200.00.

Plaintiff's request for costs is granted but based upon the amount requested in the Memorandum of Costs. The Court finds a discrepancy between the costs requested in the Memorandum of Costs (\$634.63) and the Costs identified in the declaration of Sean Bryn, paragraph 8 (\$720.48). The Court noted that Mr. Bryn's declaration referred to the attached Exhibit 3. However, referring to multiple invoices consisting of multiple pages is insufficient to show how the increased costs were calculated. Plaintiff failed to explain the discrepancy between the Memorandum of Costs and the Bryn Declaration. Without an explanation, the Court does not find the increased costs in the Bryn Declaration to be supported. The Court finds the costs requested in the Memorandum of Costs to be reasonable and awards \$634.63 as costs.

The motion for attorneys' fees and costs is GRANTED but reduced to a total of \$15,834.63.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.